

12. S-CV-0057603 The Travelers Indemnity Co. v. Smith, James

Defendant's motion to compel arbitration and motion to stay is continued to **October 6, 2026 at 8:30 a.m. in Department 32.**

13. S-CV-0057622 Cynthia L Anderson v. Hanna, Pamela K

Defendant's Demurrer to Complaint

Defendant's request for judicial notice is granted.

Defendant demurs to the plaintiff's complaint in its entirety.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Fourth, Sixth and Seventh Causes of Action

Plaintiff concedes the fourth cause of action for conversion, sixth cause of action for constructive trust, and seventh cause of action for civil conspiracy are not adequately pleaded. The demurrer is sustained as to the fourth and seventh causes of action with leave to amend. As to the sixth cause of action for constructive trust, leave to amend is denied as constructive trust is a remedy and not a cause of action.

*First Cause of Action
(Financial Elder Abuse)*

Defendant demurs to the first cause of action for financial elder abuse based on the failure to allege sufficient facts to constitute a valid cause of action.

To state a claim for financial elder abuse, plaintiff must allege facts showing that defendant took, secreted, appropriated, obtained, or retained property of an elder for a wrongful use, with intent to defraud, or by undue influence. (Welfare and Institutions Code section 15610.30.) Here, plaintiff adequately alleges standing as a successor-in-interest. (Welf. & Inst. Code § 15657.3(d); *Lickter v. Lickter* (2010) 189 Cal.App.4th 712, 732.) However, the complaint fails to allege facts showing defendant took, secreted, appropriated, obtained, or retained property of plaintiff's mother. Instead, plaintiff alleges defendant orchestrated trust amendments which harmed plaintiff.